Filed
5/15/2026 11:42 AM
Beverley McGrew Walker
District Clerk
Fort Bend County, Texas
Jenny Earp

NO. 25-DCV-328122

REINALDO J. AGUIAR MARCANO,

Respondent,

v.

GLORIA ESPINA,

Petitioner.

IN THE DISTRICT COURT OF
FORT BEND COUNTY, TEXAS
387TH JUDICIAL DISTRICT

RELATOR'S EMERGENCY, MANDATORY, AND JURISDICTIONAL MOTION FOR DE NOVO HEARING, TO COMPEL PRODUCTION, AND TO CLARIFY STATUS OF AUTOMATIC STAY IN LIGHT OF IMMINENT THREAT OF UNLAWFUL ARREST AND CONFINEMENT

TO THE HONORABLE OSCAR TELFAIR, III, PRESIDING JUDGE:

COMES NOW, Reinaldo J. Aguiar Marcano ("Relator"), appearing Pro Se and in a limited capacity to protect his fundamental rights from imminent and irreparable harm, and

files this Emergency, Mandatory, and Jurisdictional Motion. This Motion is necessitated by the recent appearance on the docket of a proposed, unsigned Capias (Index #214), which threatens Relator's liberty. This threat is the direct and poisonous fruit of a secret, unconstitutional *ex parte* hearing held on or about April 11, 2025, which produced a Temporary Restraining Order (Index #8) that was signed by a predecessor judge but, critically, was never served upon Relator.

I. Statement of Jurisdiction and Mandatory Nature of this Motion

This Court is presently under a mandatory, automatic stay of all proceedings pursuant to Texas Rule of Civil Procedure 18a(f)(1)(A) and Texas Government Code § 22.004(c). This stay arises from Relator's Third Verified Motion to Recuse (Index #149), filed January 14, 2026, which was referred by the Hon. Susan Brown to the Chief Justice of the Supreme Court of Texas on January 27, 2026 (Index #170). The stay remains in full force and effect.

Relator appears now only in a limited capacity to file this Motion, which the Court has a non-discretionary, mandatory duty to address under **Texas Family Code § 201.015**. This duty persists irrespective of the appellate stay, as it concerns the very foundational integrity of this case and seeks to prevent ongoing and future harm arising from an unserved, secret order from over a year ago. The imminent threat of arrest via the proposed Capias—which this Motion will demonstrate is predicated on the void 2025 proceedings—transforms this from a stale issue into a live, urgent controversy requiring immediate judicial attention. To ignore this motion under the guise of the stay would be a constitutional violation; to act upon it would require the Court to acknowledge its mandatory duties.

II. Argument and Authorities: The Jurisdictional Trap

A. The Secret Ex Parte Hearing of April 2025 and The Unserved Order

The official docket of this case, attached as **Exhibit A**, reveals a profoundly disturbing sequence of events in April 2025:

- **April 9, 2025:** Opposing Counsel files a "Proposed Order" deceptively titled "Temporary Restraining Order and Order Setting Hearing for Temporary Orders" (Index #5).
- **April 11, 2025:** A "Judge Docket Entry" states: **"TRO Signed - RB"** (The Hon. Richard Bell). This resulted in the issuance of a "Temporary Restraining Order" (Index #8).
- **April 11, 2025:** The Clerk issues a "Citation" (Index #9) corresponding to this TRO, which is officially marked on the docket as **"Unserved."**

Relator was never notified of, summoned to, or present at any hearing that resulted in this TRO. Five days later, on April 16, 2025, Relator was served not with the actual TRO (Index #8), but with the deceptively titled "Notice of Hearing" (Index #5), attached hereto as **Exhibit B**. A plain reading of **Exhibit B** shows it contains no operative restraining orders; it is merely a notice for a future hearing on May 15, 2025.

This sequence constitutes a textbook violation of due process and potentially implicates state and federal criminal statutes concerning the deprivation of rights under color of law (e.g., 18 U.S.C. § 242). An order was entered against Relator in secret, and its existence was concealed from him. The provisions of that TRO may still be operative today, and the subsequent Capias is directly tied to the enforcement of orders stemming from this tainted procedural foundation.

B. The Right to a De Novo Hearing is Absolute and its Timeline Was Never Triggered

Texas Family Code § 201.015(a) mandates that a party is entitled to a de novo hearing before the referring court. While subsection (b) requires a request for such a hearing to be filed not later than the third working day after the date the associate judge's proposed order is received, this timeline is predicated on the constitutional minimum of notice.

Here, the clock never started. Relator was never served with the associate judge's (or, in this case, the predecessor judge's) TRO. One cannot be expected to appeal an order whose existence is unknown. Therefore, Relator's right to a de novo hearing on the secret TRO of April 11, 2025, is preserved and is now ripe for adjudication, especially as the "fruit of the poisoned tree"—the Capias—threatens his liberty.

III. PRAYER

For these reasons, Relator Reinaldo J. Aguiar Marcano respectfully prays that this Court, in its mandatory duty, enter an Order:

1. **GRANTING** an immediate de novo hearing on the issues and evidence related to the Temporary Restraining Order (Index #8) signed on April 11, 2025.

2. **CLARIFYING** this Court's official position on whether it is bound by the mandatory, automatic stay pending the Supreme Court of Texas's ruling on the motion to recuse.

3. **COMPELLING** the production of all evidence, testimony, or exhibits presented during the secret hearing of April 2025 that was used to justify the TRO.

4. **COMPELLING** the immediate production of a certified copy of the complete, signed, and unserved Temporary Restraining Order (Index #8).

5. **COMPELLING** the production of a list of all court staff, attorneys, and other attendees, including the court reporter, who participated in or were present at the secret hearing.

6. **COMPELLING** the production of all records, including any audio, video, or stenographic transcripts, from the secret hearing.

7. **COMPELLING** the 387th Court Coordinator to produce all internal and external communications, calendars, and scheduling records related to the setting of the secret hearing.

8. **COMPELLING** the Adams Law Firm, P.C., and its former attorney Morgan Hybner to produce all records, notes, and communications related to their participation in the secret hearing and the drafting and service of the related orders.

9. For all other relief, in law and in equity, to which Relator may be justly entitled.

Respectfully submitted,



Reinaldo J. Aguiar Marcano

Reinaldo J. Aguiar Marcano, Pro Se

26714 Valleyside Drive

Katy, Texas 77494

(646) 229-5724

aguiar@reinaldo.ca

Certificate of Service

I certify that on May 15, 2026, a true and correct copy of this motion was served on all counsel of record via the state's electronic filing system.



Reinaldo J. Aguiar Marcano

List of Exhibits

Exhibit A: Docket Sheet of Cause No. 25-DCV-328122, Fort Bend County District Clerk, as of May 13, 2026.

Exhibit B: Deceptively Titled "TEMPORARY RESTRAINING ORDER AND ORDER SETTING HEARING FOR TEMPORARY ORDERS" (Index #5), electronically filed on April 9, 2025.

REGISTER OF ACTIONS

CASE NO. 25-DCV-328122

In the Matter of the Marriage of Gloria Espina and Reinaldo J. Aguiar Marcano and in the Interest of Minor Child(ren) §§§§§

Case Type: **Divorce - With Children**
Date Filed: **04/07/2025**
Location: **387th District Court**

PARTY INFORMATION

		Attorneys
Appellant	**Aguiar Marcano, Reinaldo J.** Katy, TX 77494-7208	**Pro Se**
Appellee	**Espina, Gloria**	**G Troy Pickett** *Retained* 713-224-1800(W)
Defendant or Respondent	**Aguiar Marcano, Reinaldo J.** Katy, TX 77494-7208	**Pro Se**
Minor	****Confidential**** 0' 0", 0 lbs	
Plaintiff or Petitioner	**Espina, Gloria**	**G Troy Pickett** *Retained* 713-224-1800(W)

EVENTS & ORDERS OF THE COURT

OTHER EVENTS AND HEARINGS

04/07/2025 **Petition** **Index # 1**
Original Petition for Divorce

04/07/2025 **Order** **Index # 2**
Standing Temporary Mutual Injunctions Divorce with Children

04/08/2025 **Notice** **Index # 3**
Notice of Hearing for Temporary Orders and Order to Appear

04/08/2025 **Request** **Index # 4**
Request for Process

04/09/2025 **Proposed Order** **Index # 5**
Temporary Restraining Order and Order Setting Hearing for Temporary Orders

04/09/2025 **Request** **Index # 6**
Request for Process

04/10/2025 **Judge Docket Entry**
There is no signature block for the Court. MR

04/10/2025 **Judge Docket Entry**
There is no independent request for a TRO in the pleadings. Counsel should file a Notice of Hearing for Temp. Orders or amend the pleadings accordingly. MR

04/11/2025 **Judge Docket Entry**
TRO Signed - RB

04/11/2025 **Temporary Restraining Order** **Index # 8**
Temporary Restraining Order and Order Setting Hearing for Temporary Orders

04/11/2025 **Issuance** **Index # 9**
Citation Issued to Reinaldo J. Aguiar Marcano

04/11/2025 **Citation**
e-Service
Aguiar Marcano, Reinaldo J. Unserved

04/11/2025 **Issuance** **Index # 10**
Precept Issued to Reinaldo J. Aguiar Marcano

04/11/2025 **Precept**
e-Service
Aguiar Marcano, Reinaldo J. Served 04/16/2025
Returned 04/23/2025

04/23/2025 **Officers Return** **Index # 11**
Precept Return Issued to Reinaldo J Aguiar Marcanio on 4/11/25

04/23/2025 **Officers Return** **Index # 12**
Return of Service

04/28/2025 **Answer/Contest/Response/Waiver** **Index # 13**
Answer to Original Petition for Divorce

05/14/2025 **No Fee Documents** **Index # 14**
Petitioner's Exhibit List
05/15/2025 **Temporary Restraining Order Hearing** (9:00 AM) (Judicial Officer Telfair, Oscar, III)
05/15/2025 **Judge Docket Entry**
Atty Hybner appeared w/ Petitioner; Respondent appeared pro se; Parties ordered to mediate on or before 6/13/25 w/ D. Perwin; Parties may set TO hearing if mediation is unsuccessful - RB
06/27/2025 **Notice** **Index # 15**
Notice of Impasse
06/27/2025 **Amended Filing** **Index # 16**
Amended Notice of Impasse
06/30/2025 **No Fee Documents** **Index # 17**
Respondent's Exhibit List Temporary Orders
06/30/2025 **Motion (No Fee)** **Index # 18**
Motion for Psychiatric and/or Psychological Evaluation(s) and Request for Interim Fees and Spousal Support
07/02/2025 **No Fee Documents** **Index # 19**
Respondent's Exhibit List Temporary Orders
07/02/2025 **Motion (No Fee)** **Index # 20**
Respondent's Motion to Recuse
07/21/2025 **No Fee Documents** **Index # 21**
Respondent's Exhibit List Temporary Orders
07/21/2025 **No Fee Documents** **Index # 22**
Court Proceeding on the Motion for Psychiatric and/or Psychological Evaluation(s) and Request for Interim Fees and Spousal Support
07/21/2025 **Notice** **Index # 23**
Respondent's Notice of Pending Motion to Recuse and Request to Stay Ruling to the Honorable Judge of Said Court
07/22/2025 **No Fee Documents** **Index # 24**
Petitioner's Exhibit List- Motion for Psychiatric and\or Psychological Evaluation (S) and Request for Interim Fees and Spousal Support
07/23/2025 **Other Hearing** (9:00 AM) (Judicial Officer Telfair, Oscar, III)
Motion for Psychiatric and/or Psychological Eval
07/23/2025 **Judge Docket Entry**
Atty Hybner appeared on M/ Psych Eval; Resp appeared pro se; Resp advised recuasal is for all judges associated with the 387th; Court advised case is stayed until a ruling comes back from the Admin Region Judge Brown - RB
07/23/2025 **Motion (No Fee)** **Index # 25**
Respondent's Motion for Sanctions Against Petitioner's Counsel Morgan Hybner and Tina Simon
07/23/2025 **Proposed Order** **Index # 26**
Order on Motion for Psychiatric Evaluation
07/23/2025 **Motion (No Fee)** **Index # 27**
Respondent's Motion for Sanctions
07/23/2025 **Answer/Contest/Response/Waiver** **Index # 28**
Respondent's Response in Opposition to Petitioner's Motion for Psychiatric and Psychological Evaluation
07/23/2025 **Answer/Contest/Response/Waiver** **Index # 29**
Respondent's Response in Opposition to Petitioner's Motion for Psychiatric and Psychological Evaluation
07/24/2025 **Order** **Index # 30**
Order Denying Motion to Recuse
07/25/2025 **Answer/Contest/Response/Waiver** **Index # 31**
Respondent's Response in Opposition to Petitioner's Request for Temporary Orders and Psychiatric Evaluation
07/25/2025 **Answer/Contest/Response/Waiver** **Index # 32**
Respondent's Response in Opposition to Petitioner's Request for Temporary Orders
07/25/2025 **Answer/Contest/Response/Waiver** **Index # 33**
Respondent's Response in Opposition to Petitioner's Request for Temporary Orders and Psychiatric Evaluation
07/25/2025 **Answer/Contest/Response/Waiver** **Index # 34**
Respondent's Response in Opposition to Petitioner's Second Motion for Psychiatric Evaluation and Motion to Strike Censorship Clause
07/29/2025 **Amended Filing** **Index # 35**
Respondent's Fifth Amended Response in Opposition to Petitioner's Second Motion for Psychiatric Evaluation and Motion to Strike Censorship Clause
07/29/2025 **Amended Filing** **Index # 36**
Respondent's Third Amended Motion for Sanctions Against Petitioner's Counsel and Their Principals
08/12/2025 **No Fee Documents** **Index # 37**
Court Proceeding on Temporary Orders and the Motion for Psychiatric and/or Psychological Evaluation(s) and Request for Interim Fees and Spousal Support
09/04/2025 **No Fee Documents** **Index # 38**
Petitioner's Requested Relief for Temporary Orders
09/04/2025 **Amended Filing** **Index # 39**
Respondent's Sixth Amended Response in Opposition to Petitioner's Second Motion for Psychiatric Evaluation
09/04/2025 **Motion (No Fee)** **Index # 40**
Respondent's Objection to Scope of Hearing and, in the Alternative, Motion for Continuance
09/04/2025 **Motion (No Fee)** **Index # 41**
Respondent's Fourth Amended Motion for Sanctions Against Petitioner, Her Counsel, and Their Principal
09/05/2025 **Notice** **Index # 42**
Respondent's Notice of Service of Evidence
09/05/2025 **No Fee Documents** **Index # 43**
Petitioner Exhibit List Motion for Psychiatric and/or Psychological Evaluation (s) and Request for Interim Fees and Spousal Support / Temporary Orders
09/05/2025 **No Fee Documents** **Index # 44**
Objection to Respondent's Translation and Petitioner's Motion to Strike Pleading
09/08/2025 **Temporary Orders Hearing** (9:00 AM) (Judicial Officer Telfair, Oscar, III)
1.5
09/08/2025 **Judge Docket Entry**
Atty. M. Hybner appeared with and on behalf of Pet. for TO hearing. Resp. appeared Pro Se. Agreeements reached on a number of issues read into record. Court heard possession and access, attys' fees, and Motion for Pyschiatric examination. Those matters taken under advisement. OT

09/08/2025 **Judge Docket Entry**
Court also heard Petitioner's Motion for Intrerim atty. fees. Taken under advisement with other issues not agreed too. OT
09/09/2025 **Notice** **Index # 45**
Respondent's Notice of Withdrawal of Consent to Agreements Made on the Record
09/09/2025 **Motion (No Fee)** **Index # 46**
Respondent's Motion to Reconsider Ruling Excluding Respondent's Exhibit 2 and Offer of Proof
09/09/2025 **Answer/Contest/Response/Waiver** **Index # 47**
Respondent's First Amended Answer and Original Counter-Petition for Divorce
09/10/2025 **No Fee Documents** **Index # 48**
Respondent's Unsworn Declaration Regarding Protected Person Status
09/10/2025 **Motion (No Fee)** **Index # 49**
Respondent's Motion for the Court to Take Judicial Notice
09/10/2025 **Proposed Order** **Index # 50**
Order Granting Respondent's Motion for the Court to Take Judicial Notice
09/10/2025 **Amended Filing** **Index # 51**
Respondent's Amended Notice of Withdrawal of Consent to Agreements Made on the Record
09/11/2025 **Order** **Index # 52**
Order for Petitioner to Enter Marital Residence and Retrieve Property
09/11/2025 **Motion (No Fee)** **Index # 53**
Respondent's Motion to Reconsider Temporary Orders
09/11/2025 **Motion (No Fee)** **Index # 54**
Respondent's Emergency Motion for Temporary Orders Based on Protected Person Status Under the 1951 Refugee Convention
09/11/2025 **Judge Docket Entry**
Parties appeared for rendition on remaining issues not agreed too for TO. Atty. M. Hybner appeared on behalf of Petitioner/movant. Resp. appeared Pro se. Petitioner name TJMC with right to determine residence of child. Respondent granted supervised visitation with his mother supervisor.Interim atty. fees denied. Petitioner granted access to marital home to retrieve her belongings and some of child's belongings including her adult child's belongings on date certain. Law enforcement officer to be present. Other agreements approved by court. Entry set for 10/3/25. OT
09/16/2025 **Proposed Order** **Index # 55**
First Amended Order for Petitioner to Enter Residence and Retrieve Property
09/16/2025 **Certificate** **Index # 56**
Petitioner's Certificate of Written Discovery Directed to Respondent
09/24/2025 **Request** **Index # 57**
Respondent's First Combined Request for Discovery to Petitioner
09/25/2025 **Answer/Contest/Response/Waiver** **Index # 58**
Respondent's Objections to Petitioner's Proposed Order
09/29/2025 **Amended Filing** **Index # 59**
Respondent's First Amended Emergency Motion to Strike Fraudulent Proposed Order and for Sanctions
09/29/2025 **Motion (No Fee)** **Index # 60**
Respondent's Emergency Motion to Modify Conditions of Supervised Visitation and to Compel Preservation of Evidence
09/29/2025 **Notice** **Index # 61**
Respondent's Notice of Change of Address
09/29/2025 **Notice** **Index # 62**
Notice of Entry- Temporary Orders
09/30/2025 **Motion (No Fee)** **Index # 63**
Respondent's Motion to Sign Order
09/30/2025 **Proposed Order** **Index # 64**
Order on Respondent's Motion to Sign Order
09/30/2025 **Request** **Index # 65**
Respondent's Consolidated Request for Submission and Hearing
09/30/2025 **Request** **Index # 66**
Respondent's Emergency Request for Immediate Hearing and Motion for Continuance
09/30/2025 **Notice** **Index # 67**
Respondent's Notice of Filing Evidence in Support of Emergency Request
10/01/2025 **Letters**
Letter from First Court of Appeals (Petition for Writ of Mandamus Filed)
10/01/2025 **Answer/Contest/Response/Waiver** **Index # 68**
Response to Respondent's Motion for Sanctions Against Petitioner's Counsel Morgan Hybner and Tina Simon
10/02/2025 **Amended Filing** **Index # 69**
Respondent's First Amended Motion to Reconsider Temporary Orders
10/03/2025 **Entry** (9:00 AM) (Judicial Officer Telfair, Oscar, III)
10/03/2025 **Motion (No Fee)** **Index # 71**
Respondent's Objections to Petitioner's Amended Proposed Order and Objections to Hearing
10/03/2025 **Motion (No Fee)** **Index # 72**
Respondent's Motion to Sign Accurate Temporary Orders
10/03/2025 **Proposed Order** **Index # 73**
Respondent's Proposed Temporary Orders
10/06/2025 **No Fee Documents** **Index # 74**
Respondent's Second Combined Requests for Discovery to Petitioner
10/06/2025 **Motion (No Fee)** **Index # 75**
Respondent's Motion to Strike Fraudulent Proposed Orders and for Sanctions
10/06/2025 **Motion (No Fee)** **Index # 76**
Respondent's Emergency Motion to Strike Fraudulent Proposed Orders, Compel Signature of an Accurate Order, and for Sanctions
10/07/2025 **Letters**
Letter from First Court of Appeals (Relator's Amended Petition for Writ of Mandamus Filed)
10/07/2025 **Notice** **Index # 77**
Notice of Entry - Temporary Orders
10/07/2025 **Answer/Contest/Response/Waiver** **Index # 78**
Respondent's Objections to Petitioner's Proposed Temporary Orders of October 7th, 2025
10/09/2025 **Proposed Order** **Index # 79**
First Amended Temporary Order

10/09/2025 **Answer/Contest/Response/Waiver** **Index # 80**
Respondent's Consolidated Objections to Petitioner's Proposed Temporary Orders
10/10/2025 **Notice** **Index # 81**
Notice of Entry- Temporary Orders
10/13/2025 **Motion (No Fee)** **Index # 82**
Respondent's Emergency Motion for Leave to Conduct Expedited Discovery
10/13/2025 **Motion (No Fee)** **Index # 83**
Respondent's Emergency Motion for Psychiatric Evaluation of Petitioner and for Reconsideration of Temporary Orders
10/13/2025 **Parent Education Certificate** **Index # 84**
Certificate of Completion (Gloria Espina)
10/14/2025 **Letters**
Letter from First Court of Appeals
10/14/2025 **Opinion** **Index # 85**
Memorandum Opinion from First Court of Appeals
10/14/2025 **Motion (No Fee)** **Index # 86**
Respondent's Emergency Motion for Temporary Restraining Order to Protect Child and for Psychiatric Evaluation of Petitioner
10/15/2025 **No Fee Documents** **Index # 87**
Petitioner's Exhibit List-Entry
10/15/2025 **Judge Docket Entry**
Court signs Temporary Orders. OT
10/15/2025 **Temporary Order** **Index # 89**
Temporary Orders
10/15/2025 **Notice** **Index # 90**
Respondent's Notice of Filing of Emergency Motion in Federal Court
10/15/2025 **Motion (No Fee)** **Index # 93**
Respondent's Second Verified Motion to Recuse
10/16/2025 **Motion (No Fee)** **Index # 88**
Respondent's Second Verified Motion to Recuse
10/16/2025 **Judgment Notice Sent/Rule 306A3 and 21 (f) (10)** **Index # 91**
Sent to All Pro Se Parties RTS Attempted - Not Known Unable to Forward
10/17/2025 **Motion (No Fee)** **Index # 92**
Respondent's Second Verified Motion to Recuse (Amended)
10/17/2025 **Letter from Clerk**
C/C of Respondent's Second Verified Motion to Recuse (Amended) E-Served to the Honorable Judge Susan Brown
10/17/2025 **Letter from Clerk**
C/C of Respondent's Second Verified Motion to Recuse E-Served to the Honorable Judge Susan Brown
10/17/2025 **Letter from Clerk**
C/C of Respondent's Second Verified Motion to Recuse E-Served to the Honorable Judge Susan Brown
10/20/2025 **Notice** **Index # 94**
Entry of Appearance
10/22/2025 **Motion (No Fee)** **Index # 95**
Agreed Motion for Withdrawal of Counsel
10/22/2025 **Motion (No Fee)** **Index # 97**
Respondent's Emergency Objection to Fraudulent "Agreed" Motion for Withdrawal Motion to Strike
10/22/2025 **Motion (No Fee)** **Index # 98**
Respondent's Motion for Leave to File Amended Emergency Objection
10/24/2025 **Motion (No Fee)** **Index # 99**
Respondent's Emergency Motion to Clarify Docket Entries and Compel Production of Signed Temporary Restraining Order
10/27/2025 **Motion (No Fee)** **Index # 100**
Respondent's Supplement to Second Verified Motion to Recuse
10/28/2025 **Letter from Clerk**
C/C of Respondent's Supplement to Second Verified Motion to Recuse eMailed to the Honorable Judge Susan Brown
10/28/2025 **Answer/Contest/Response/Waiver** **Index # 101**
Response to Motion to Recuse Judge
10/28/2025 **Motion (No Fee)** **Index # 102**
Court Proceeding on the Motion for Withdrawal of Counsel- Via Submission
10/30/2025 **Answer/Contest/Response/Waiver** **Index # 103**
Respondent's Second Supplement to Second Verified Motion to Recuse
10/30/2025 **Letter from Clerk**
C/C of Respondent's Second Supplement to Second Verified Motion to Recuse eMailed to the Honorable Judge Susan Brown
11/07/2025 **Notice** **Index # 104**
Respondent's Emergency Notice to Administrative Judge of Imminent Expiration of Orders Affecting Child's Welfare
11/07/2025 **Notice** **Index # 105**
Respondent's Notice of Automatic Stay and Objection to Void Hearing
11/07/2025 **Answer/Contest/Response/Waiver** **Index # 106**
Response to Respondent's Emergency Notice
11/07/2025 **Motion (No Fee)** **Index # 107**
Respondent's Emergency Verified Objection to Fraudulent Filing and third Supplement to Second Verified Motion to Recuse
11/10/2025 **Temporary Orders Hearing** (9:00 AM) (Judicial Officer Telfair, Oscar, III)
2hr 1:30pm
11/10/2025 **Notice** **Index # 108**
Respondent's Emergency Notice of Newly Discovered Evidence of Multi-Court Fraud (Fourth Supplement to Second Verified Motion to Recuse)
11/10/2025 **Notice** **Index # 109**
Respondent's Emergency Notice of Newly Discovered Evidence of Multi-Court Fraud (Fourth Supplement to Second Verified Motion To Recuse)
11/10/2025 **Motion (No Fee)** **Index # 110**
Respondent's Emergency Notice of Overt Judicial Hostility and Request for Immediate Administrative Stay
11/10/2025 **Letter from Clerk**
C/C of Respondent's Emergency Notice of Newly Discovered Evidence of Multi-Court Fraud (Fourth Supplement to Second Verified Motion to Recuse) E-Mailed to the Honorable Judge Susan Brown

11/10/2025 **Letter from Clerk**
C/C of Respondent's Emergency Notice of Newly Discovered Evidence of Multi-Court Fraud (Fourth Supplement to Second Verified Motion to Recuse) E-Mailed to the Honorable Judge Susan Brown

11/10/2025 **Motion (No Fee)** **Index # 111**
Respondent's Verified Motion to Strike Malicious and Fraudulent Order and for Emergency Intervention to Protect the Child

11/12/2025 **Motion (No Fee)** **Index # 112**
Motion for Sanctions Pursuant to Rule 13 of the Texas Rules of Civil Procedure and Pursuant to Section 10 of the Texas Civil Practice and Remedies Code

11/12/2025 **Answer/Contest/Response/Waiver** **Index # 113**
Respondent's Response and Objection to Petitioner's Void Motion for Sanctions

11/19/2025 **Order to Recuse** **Index # 115**
Order Denying Second Motion to Recuse and all Subsequent Amendments and Supplements

11/20/2025 **Copy of Order/Judgment Sent - Rule 21 (f) (10)** **Index # 116**
Sent to all Parties/Attorney's

11/20/2025 **Motion (No Fee)** **Index # 117**
Respondent's Re-Urged and Supplemented Motion to Vacate Void Order

11/20/2025 **Motion (No Fee)** **Index # 118**
Respondent's Objection to Hearing on Counsel's Motion to Withdraw and Emergency Request Pending Sanctions Motions

11/20/2025 **Notice** **Index # 119**
Notice of Court Proceeding

11/24/2025 **Letters**
Letter from First Court of Appeals

11/24/2025 **Letters**
Letter from First Court of Appeals (Relator's Petition for Writ of Mandamus filed)

11/25/2025 **Letters**
Letter from First Court of Appeals

11/25/2025 **Opinion** **Index # 120**
Memorandum Opinion from First Court of Appeals

11/25/2025 **Answer/Contest/Response/Waiver** **Index # 121**
Response to Respondent's Objections to Petitioner's Motion for Withdrawal of Counsel

11/26/2025 **Motion (No Fee)** **Index # 122**
Respondent's Motion to Strike Hearing and Notice of Hearing

11/26/2025 **Answer/Contest/Response/Waiver** **Index # 124**
Respondent's Reply to Petitioner's Response to Objection to Motion for Withdrawal

12/01/2025 **Notice** **Index # 123**
Post Card Notice from the Supreme Court of Texas (Petition for Writ of Mandamus Filed)

12/01/2025 **Motion (No Fee)** **Index # 125**
Respondent's Supplement to Objection to Petitioner's Motion for Withdrawal of Counsel

12/01/2025 **Motion (No Fee)** **Index # 126**
Respondent's Supplement to Motion to Strike Hearing and Notice of Fraudulent Docket Entry

12/02/2025 **Answer/Contest/Response/Waiver** **Index # 127**
Respondent's Re-Urged Objection to Proceeding and Emergency Notice of Petitioner's Non-Compliance with the Court's Order and Untimely Discovery

12/02/2025 **Motion (No Fee)** **Index # 128**
Respondent's Consolidated Objection to Counsel's Motion to Withdraw and Fifth Amended and Superseding Motion for Sanctions

12/15/2025 **No Fee Documents** **Index # 129**
Petitioner Gloria Espina's Exhibit List

12/16/2025 **Other Hearing** (9:00 AM) (Judicial Officer Telfair, Oscar, III)

12/16/2025 **Answer/Contest/Response/Waiver** **Index # 130**
Respondent's Emergency Objection and Motion to Strike Hearing due to Defective and Prejudicial Notice

12/16/2025 **Notice** **Index # 131**
Court Proceeding on the Motion for Withdrawal of Counsel

12/16/2025 **Answer/Contest/Response/Waiver** **Index # 133**
Respondent's Objection to Proposed Order and Emergency Motion to Strike False Recital

12/16/2025 **Judge Docket Entry**
Motion for Sanctions and Attys. Fees. Atty. T. Pickett for Movant. Resp. although properly given notice dna. Name called in courtroom and in hall by bailiff 3 times. Argument by T. PIckett. Motion granted. Sanctions of $3,000 and Atty. Fees of $3400.00 awarded. Order to be filed for signature. OT

12/17/2025 **Notice** **Index # 134**
Notice of Pending Motion for Stay at the Supreme Court of Texas

12/17/2025 **Motion (No Fee)** **Index # 135**
Respondent's Motion to Address Opposing Counsel's Pattern of Prejudicial Scheduling Practice and Request for a Protective Order

12/17/2025 **Motion (No Fee)** **Index # 136**
Respondent's Motion to Clarify Counsel of Record and For Disclosure of All Assisting Firms

12/17/2025 **Notice** **Index # 137**
Respondent's Notice of Clarification Regarding Objection to Proposed Order and Emergency Motion to Strike False Recital

12/17/2025 **Judge Docket Entry**
Court signs Order on Sanctions. OT.

12/17/2025 **Order** **Index # 138**
Order Granting Sanctions

12/17/2025 **Judge Docket Entry**
Court signs Order Granting Sanctions. OT.

12/18/2025 **Copy of Order/Judgment Sent - Rule 21 (f) (10)** **Index # 139**
Sent to all Pro Se Parties

12/18/2025 **Motion (No Fee)** **Index # 140**
Respondent's Emergency Motion to Vacate Void Order Signed on Dec. 17, 2025

01/07/2026 **Motion (No Fee)** **Index # 141**
Motion for Enforcement of Temporary Orders and Motion for Additional Temporary Orders

01/07/2026 **Notice** **Index # 142**
Notice of Court Proceeding

01/09/2026 **Notice** **Index # 148**
Respondent's Notice of Filing of Petition for Writ of Mandamus and Emergency Motion for Stay in the US Court of Appeals for the Fifth Circuit and Filing of Complaint with the US Department of Justice

01/12/2026 **Notice** **Index # 144**
Post Card Notice from the Supreme Court of Texas (Denied Petition or Writ of Mandamus)

01/14/2026 **Motion (No Fee)** **Index # 146**
Respondent's Emergency Motion to Stay Proceedings and to Quash Notice of Hearing

01/14/2026 **Motion to Recuse** **Index # 149**
Respondent's Third Verified Motion to Recuse the Honorable Oscar Telfair III

01/14/2026 **Notice** **Index # 150**
Respondent's Notice of Filing of Petition for Writ of Mandamus and Renewed Emergency Motion for Stay in the U.S. Court of Appeals for the Fifth Circuit

01/16/2026 **Answer/Contest/Response/Waiver** **Index # 151**
Response to Third Motion to Recuse

01/20/2026 **Answer/Contest/Response/Waiver** **Index # 152**
Respondent's Reply in Support of Third Verified Motion to Recuse

01/20/2026 **Answer/Contest/Response/Waiver** **Index # 153**
Respondent's Supplement to Reply in Support of Third Verified Motion to Recuse

01/20/2026 **Motion (No Fee)** **Index # 154**
Respondent's Motion for Leave to File Reply and Supplement in Support of Third Verified Motion to Recuse

01/20/2026 **Amended Filing** **Index # 155**
Respondent's Amended Motion for Leave to File Reply and Supplement in Support of Third Verified Motion to Recuse

01/20/2026 **Letter from Clerk**
C/C of Response to Third Motion to Recuse Judge E-Mailed to the Honorable Judge Susan Brown

01/21/2026 **Notice** **Index # 156**
Emergency Verified Notice of Ongoing Conspiracy to Commit Terrorist Acts and Treason in Violation of 18U.S.C. 2381

01/21/2026 **Notice** **Index # 157**
Respondent's Verified Notice of Confirmation of Procedural Obstruction by Presiding Judge and Continued Lack of Jurisdiction

01/21/2026 **Motion (No Fee)** **Index # 158**
Motion for Leave to File Late Witness and Exhibit Lists

01/21/2026 **No Fee Documents** **Index # 159**
Exhibit List

01/21/2026 **No Fee Documents** **Index # 160**
Witness List

01/21/2026 **No Fee Documents** **Index # 161**
Exhibit P-1

01/22/2026 **Temporary Orders Hearing** (9:00 AM) (Judicial Officer Telfair, Oscar, III)

01/22/2026 **Motion (No Fee)** **Index # 162**
Respondent's Amended Motion for Leave to file reply and Supplement in Support of Third verified Motion to Recuse

01/22/2026 **Notice** **Index # 163**
Emergency Verified Notice of Ongoing Conspoiracy to Commit Terrorist Acts and Treason in Violation of 18 U.S.C. 2381

01/22/2026 **Notice** **Index # 164**
Respondent's Verified Notice of Confirmation of Procedural Obstruction by Presiding Judge and Continue lack of Jurisdiction

01/22/2026 **No Fee Documents** **Index # 165**
Petitioner's Exhibit List - Motion for Withdrawal

01/23/2026 **No Fee Documents** **Index # 166**
Relief Requested

01/27/2026 **M/Withdraw as Counsel** (9:00 AM) (Judicial Officer Telfair, Oscar, III)

01/27/2026 **Notice** **Index # 169**
Respondent's Notice Regarding Non-Appearance at Void Hearing

01/27/2026 **Judge Docket Entry**
Atty. M. Hybner appeared on Motion to Withdraw as Counsel. All parties and attorneys signed except Respondent. Motion granted. Order signed. OT.

01/27/2026 **Order to Recuse** **Index # 170**
Order on Motion to Recuse and to Refer to Chief Justice

01/27/2026 **Order** **Index # 171**
Order on Agreed Motion for Withdrawal of Counsel

01/27/2026 **Motion (No Fee)** **Index # 173**
Respondent's Motion to Correct the Official Record and for Sanctions for Systemic Docket Falsification

01/28/2026 **Copy of Order/Judgment Sent - Rule 21 (f) (10)** **Index # 172**
Sent to All Pro Se Parties

01/28/2026 **Letter from Clerk**
Copy of Order on Motion to Recuse and to Refer to Chief Justice Emailed to Susan Brown

02/02/2026 **Amended Filing** **Index # 174**
Supplement to Response to Third Motion to Rescue Declaration of G. Troy Pickett

02/03/2026 **Notice** **Index # 175**
Respondent's Notice of Counsel's Violation of Mandatory Stay and Emergency Motion to Strike and for Sanctions

02/18/2026 **Application** **Index # 176**
Emergency Application for a Stay of State Court Proceedings and for Writ of Injunction

02/22/2026 **Judge Docket Entry**
Court signs additional temporary orders. OT.

02/22/2026 **Temporary Order** **Index # 178**
Additional Temporary Orders

02/23/2026 **Notice** **Index # 177**
Notice of Fraudulent Filing and Spoliation of Evidence by Clerk of Court

02/24/2026 **Copy of Order/Judgment Sent - Rule 21 (f) (10)** **Index # 179**
Sent to All Pro-Se Parties

02/24/2026 **Judge Docket Entry**
Court signs IWO. OT.

02/24/2026	**Order** **Index # 180**		
	Income Withholding for Support		
02/25/2026	**Copy of Order/Judgment Sent - Rule 21 (f) (10)** **Index # 181**		
	Sent to all Pro Se Parties		
03/02/2026	**Notice** **Index # 182**		
	Post Card Notice from the Supreme Court of Texas (Denied Motion to Reinstate)		
03/02/2026	**Notice** **Index # 183**		
	Post Card Notice from the Supreme Court of Texas (Motion to Consolidate Motion to Recuse Denied)		
03/02/2026	**Notice** **Index # 184**		
	Post Card Notice from the Supreme Court of Texas (Denied Motion for Clarification and for Service of Order)		
04/13/2026	**Petition** **Index # 185**		
	Petition for Enforcement of Spousal Maintenance		
04/13/2026	**Request** **Index # 187**		
	Request for Process		
04/14/2026	**Judge Docket Entry**		
	Court signs Order to Appear. OT.		
04/14/2026	**Order** **Index # 188**		
	Order to Appear		
04/15/2026	**Copy**		
	Copy of Order/Judgment Sent - Rule 21 (f) (10) - Sent to All Pro Se Parties		
04/15/2026	**Issuance** **Index # 189**		
	Citation Issued to Reinaldo J. Aguiar Marcano		
04/15/2026	**Citation**		
	eService		
	Aguiar Marcano, Reinaldo J.	Served	04/17/2026
		Returned	05/13/2026
04/15/2026	**Issuance** **Index # 190**		
	Precept Issued to Reinaldo J. Aguiar Marcano		
04/15/2026	**Precept**		
	eService		
	Aguiar Marcano, Reinaldo J.	Served	04/17/2026
		Returned	05/13/2026
04/21/2026	**Letters**		
	Required Discovery Dispute Letter		
04/28/2026	**Motion (No Fee)** **Index # 191**		
	Motion to Compel Discovery and for Sanctions		
04/28/2026	**Notice** **Index # 192**		
	Notice of Hearing		
05/12/2026	**Notice of Appeal** **Index # 193**		
	Notice of Appeal		
05/12/2026	**Notice** **Index # 194**		
	Notice of Assignment to First Court of Appeals		
05/12/2026	**Letters**		
	Record Submission Confirmation-Notice of Assignment Sent to First Court of Appeals		
05/12/2026	**Letter from Clerk**		
	Notice of Assignment sent to Pro Se, Attorney and Court Reporter		
05/12/2026	**Exhibit List**		
	Exhibit List for 12/16/25		
05/13/2026	**Notice of Appeal** **Index # 195**		
	Amended and Superseding Notice of Appeal) Appertaining Only to October 15, 2025 Order Index #89)		
05/13/2026	**Notice of Appeal** **Index # 196**		
	Amended and Superseding Notice of Appeal (Appertaining Only to December 17, 2025 Order Index #138)		
05/13/2026	**Notice of Appeal** **Index # 197**		
	Notice of Appeal (Appertaining Only to April 14, 2026 Order Index #188)		
05/13/2026	**Notice of Appeal** **Index # 198**		
	Amended and Superseding Notice of Appeal (Appertaining Only to February 22, 2026 Order Index #178)		
05/13/2026	**Notice** **Index # 199**		
	Notice of Assignment to First Court of Appeals		
05/13/2026	**Letters**		
	Record Submission Confirmation-Notice of Assignment Sent to First Court of Appeals		
05/13/2026	**Notice** **Index # 200**		
	Appellant's Notice of Election to File an Appendix		
05/13/2026	**Notice** **Index # 201**		
	Appellant's Notice of Election to File an Appendix		
05/13/2026	**Notice** **Index # 202**		
	Appellant's Notice of Election to File and Appendix (Appertaining to Appeal of December 17, 2025 Order Index #138)		
05/13/2026	**Notice** **Index # 203**		
	Appellant's Notice of Election to File an Appendix (Appertaining to Appeal of April 14, 2026 Order Index #188)		
05/13/2026	**Officers Return** **Index # 204**		
	Citation Return for Reinaldo J. Aguilar Marcano. Issued on 04/15/2026		
05/13/2026	**Officers Return** **Index # 205**		
	Precept Return for Reinaldo J. Aguiar Marcano. Issued on 04/15/2026		
05/13/2026	**Letter from Clerk**		
	Notice of Assignment Sent to Pro Se, Attorney and Court Reporter		
05/13/2026	**Notice** **Index # 206**		
	Appellant's Notice of Election to File an Appendix		
05/13/2026	**Motion (No Fee)** **Index # 207**		
	Emergency Motion to Stay May 14, 2026 Hearing and Quash Purported Service		
05/13/2026	**Notice of Appeal** **Index # 208**		
	Notice of Appeal (Appertaining only to April 11, 2025 Order Index #8)		

05/13/2026	**Notice** **Index # 209**	
	Notice of Assignment to First Court of Appeals	
05/13/2026	**Letters**	
	Record Submission Confirmation-Notice of Assignment Sent to First Court of Appeals	
05/13/2026	**Letter from Clerk**	
	Notice of Assignment sent to Pro Se, Attorney and Court Reporter	
05/13/2026	**Motion (No Fee)** **Index # 210**	
	Consolidated Motion to Quash all Proceedings Held in Violation of Automatic Stay	
05/13/2026	**Notice** **Index # 211**	
	Notice of Automatic Stay Pending Ruling on Third Verified Motion to Recuse	
05/14/2026	**Enforcement/Contempt Hearing** (9:00 AM) (Judicial Officer Telfair, Oscar, III)	

FINANCIAL INFORMATION

	Appellant Aguiar Marcano, Reinaldo J.			
	Total Financial Assessment			11.00
	Total Payments and Credits			11.00
	Balance Due as of 05/13/2026			**0.00**
03/10/2026	Transaction Assessment			11.00
03/10/2026	In Person Payment	Receipt # 2026-11939-DCLK	Aguiar Marcano, Reinaldo J.	(11.00)

	Appellee Espina, Gloria			
	Total Financial Assessment			388.00
	Total Payments and Credits			388.00
	Balance Due as of 05/13/2026			**0.00**
04/07/2025	Transaction Assessment			350.00
04/07/2025	E-filing	Receipt # 2025-18774-DCLK	Espina, Gloria	(213.00)
04/07/2025	State Credit			(137.00)
04/09/2025	Transaction Assessment			16.00
04/09/2025	E-filing	Receipt # 2025-19136-DCLK	Espina, Gloria	(16.00)
04/10/2026	Transaction Assessment			6.00
04/10/2026	E-filing	Receipt # 2026-18069-DCLK	Espina, Gloria	(6.00)
04/13/2026	Transaction Assessment			16.00
04/13/2026	E-filing	Receipt # 2026-18319-DCLK	Espina, Gloria	(16.00)

	Attorney Hybner, Morgan T			
	Total Financial Assessment			7.00
	Total Payments and Credits			7.00
	Balance Due as of 05/13/2026			**0.00**
09/11/2025	Transaction Assessment			7.00
09/11/2025	In Person Payment	Receipt # 2025-48203-DCLK	Hybner, Morgan T	(7.00)

Filed
4/9/2025 5:26 PM
Beverley McGrew Walker
District Clerk
Fort Bend County, Texas
A'Leah Hudson

NOTICE: THIS DOCUMENT CONTAINS SENSITIVE DATA

NO. 25-DCV-328122

IN THE MATTER OF THE MARRIAGE OF	§	**IN THE DISTRICT COURT**
GLORIA ESPINA AND REINALDO J. AGUIAR MARCANO	§	**387th JUDICIAL DISTRICT**
AND IN THE INTEREST OF MARCELO A. AGUIAR, A CHILD	§	**FORT BEND COUNTY, TEXAS**

TEMPORARY RESTRAINING ORDER AND ORDER SETTING HEARING FOR TEMPORARY ORDERS

IT IS ORDERED that the above matter is set before the Court at **9:00 A.M on May 15, 2025**.

All participants, including Respondent, Reinaldo J. Aguiar Marcano, are ORDERED to appear on the date and at the time set for the hearing physically in the courtroom of this Court at 1422 Eugene Heiman Circle Richmond, Texas 77469, Texas.

Participants may appear before the Court by other means only if permitted by court order.

The Court's designated contact information can be found at https://www.fortbendcountytx.gov/government/departments/district-courts/387th-district-court

Respondent is FURTHER ORDERED at the time of his appearance before this Court to furnish information sufficient to accurately identify Respondent's net resources and ability to pay child support and to bring with him tax returns for the past two years, a financial information statement substantially in the form and detail prescribed by the current edition of *Texas Family Law Practice Manual*, form 4-2, and pay stubs for the past three months.

Failure of a participant to appear as directed may result in sanctions being entered, up to

and including default judgment or dismissal of claims.

Instructions for submitting evidence:

a. Exhibit List and Witness List **SHALL** be exchanged and filed with the clerk by 12 noon on the business day before any hearing or trial.

b. Exhibits shall be pre-marked, exchanged and copies provided to all counsel and self-represented litigants by 12 noon on the business day before any hearing or trial.

c. Exhibits should be pre-marked identifying the offering party (Petitioner, Respondent, Intervenor, etc.) and using numbers only. For example, "Petitioner Ex. 1," but not "Petitioner Ex. A."

The purpose of the hearing is to determine whether, while this case is pending:

1. The ***Standing Restraining Order***, attached to the Original Petition of Divorce as **Exhibit A**, should remain in place.

2. Petitioner requests the Court, after notice and hearing, for the preservation of the property and protection of the parties, to make temporary orders and issue any appropriate temporary injunctions respecting the temporary use of the parties' property as deemed necessary and equitable, including but not limited to the following:

    a. Petitioner should be awarded exclusive use and control of the 2021 Tesla Model S (color black), and Respondent should be enjoined from entering, operating, or exercising control over it.

3. Petitioner requests the Court, after notice and hearing, to dispense with the necessity of a bond and to make temporary orders and issue any appropriate temporary injunctions for the safety and welfare of the child of the marriage as deemed necessary and equitable, including but not limited to the following:

    a. Designating Petitioner as the conservator who has:

        i. The exclusive right to designate the primary residence of the child.

Petitioner requests the Court to apportion the rights and duties of a parent set out in section 153.132 of the Texas Family Code.

ii. The exclusive right to making invasive medical, psychiatric and psychological, and educational decisions, after advanced consultation with the other parent conservator.

iii. The exclusive right to enroll the child in school.

b. Pending the return of a psychiatric evaluation, limiting possession and access to the child subject of this suit to not include under 50 or elections for an expanded possession and access schedule or overnights.

c. Ordering Respondent to provide support for the child, including the payment of child support and medical and dental support in the manner specified by the Court, while this case is pending.

d. Ordering reasonable periods of electronic communication between the child and Petitioner to supplement Petitioner's periods of possession of the child.

e. Restricting the primary residence of the child to Fort Bend County, Texas and counties contiguous to Fort Bend County, Texas.

f. Ordering the psychiatric evaluation of Reinaldo J. Aguiar Marcano Marcano.

g. Ordering the parties to attend a parent education and family stabilization course.

h. Ordering Respondent to produce copies of income tax returns for tax years 2023 and 2022, a financial statement, and current pay stubs by a date certain.

4. Petitioner requests the Court, after notice and hearing, for the preservation of the property and protection of the parties, to make temporary orders and issue any appropriate temporary injunctions regarding attorney's fees and support as deemed necessary and equitable, including but not limited to the following:

   a. Ordering Respondent to pay reasonable interim attorney's fees and expenses, including but not limited to fees for appraisals, accountants, actuaries, and so forth. Petitioner is not in control of sufficient community assets to pay attorney's fees and anticipated expenses.

   b. Petitioner has insufficient income for support, Ordering Respondent to make payments for the support of Petitioner until a final decree is signed.

c. Ordering Respondent be ordered to pay estimated income taxes on the due dates as required by the Internal Revenue Service and under the Social Security numbers of both Petitioner and Respondent.

d. Ordering Respondent to pay any ad valorem taxes and insurance premiums as due on the following property: 2302 Briton Ridge, Katy, Texas 77494 and 26714 Valleyside Drive, Katy, Texas 77494

5. Petitioner requests the Court, after notice and hearing, for the preservation of the property and protection of the parties, to make temporary orders for discovery and ancillary relief as deemed necessary and equitable, including but not limited to the following:

a. Ordering Respondent to provide a sworn inventory and appraisement of all the separate and community property owned or claimed by the parties and all debts and liabilities owed by the parties substantially in the form and detail prescribed by the current edition of *Texas Family Law Practice Manual*, form 7-1.

b. Ordering Respondent to produce copies of all the information necessary to prepare Petitioner's tax returns for tax years 2023 and 2022, including tax returns and all supporting schedules for tax years 2023 and 2022, by a date certain.

c. Ordering the parties to participate in an alternative dispute resolution process before trial of this matter.

d. Ordering Respondent to execute all necessary releases required by Petitioner to obtain any discovery allowed by the Texas Rules of Civil Procedure.

e. Ordering Respondent to execute all necessary releases pursuant to the Health Insurance Portability and Accountability Act (HIPAA) and 45 C.F.R. section 164.508 to permit Petitioner to obtain health-care information regarding the child.

f. Ordering Respondent to execute for all health-care providers of the child an authorization for disclosure of protected health information to Petitioner pursuant to the Health Insurance Portability and Accountability Act (HIPAA) and 45 C.F.R. section 164.508.

g. Ordering Respondent to designate Petitioner as a person to whom protected health information regarding the child may be disclosed whenever Respondent executes an authorization for disclosure of protected health information pursuant to the

Health Insurance Portability and Accountability Act (HIPAA) and 45 C.F.R. section 164.508.

h. Ordering a pretrial conference to simplify the issues in this case and determine the stipulations of the parties and for any other matters the Court deems appropriate.

6. The Court should make all other and further orders that are pleaded for or that are deemed necessary for the safety and welfare of the child.

SIGNED on _____ at _____ ___.M.

_____
JUDGE PRESIDING

APPROVED AS TO FORM ONLY:

ADAMS LAW FIRM
23501 Cinco Ranch Blvd. Ste. H205
Katy, TX 77494
Tel: (281) 391-9237
Fax: (281) 391-0451



By:_____
Morgan Hybner
State Bar No. 24073583
mhybner@adamslawfirm.com
Attorney for Petitioner

Automated Certificate of eService

This automated certificate of service was created by the efiling system. The filer served this document via email generated by the efiling system on the date and to the persons listed below. The rules governing certificates of service have not changed. Filers must still provide a certificate of service that complies with all applicable rules.

Tina Simon on behalf of Morgan Hybner
Bar No. 24073583
tsimon@adamslawfirm.com
Envelope ID: 99486164
Filing Code Description: Proposed Order
Filing Description: Temporary Restraining Order and Order Setting Hearing for Temporary Orders
Status as of 4/10/2025 9:18 AM CST

Associated Case Party: Gloria Espina

Name	BarNumber	Email	TimestampSubmitted	Status
Morgan Hybner		mhybner@adamslawfirm.com	4/9/2025 5:26:31 PM	SENT
Tina Simon		tsimon@adamslawfirm.com	4/9/2025 5:26:31 PM	SENT

Automated Certificate of eService

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Envelope ID: 114953925
Filing Code Description: Motion (No Fee)
Filing Description: Relator's Emergency, Mandatory, and Jurisdictional, Motion for De Novo Hearing, to Compel Production, and to Clarify status of Automatic Stay in Light of Imminent Threat of Unlawful Arrest and Confinement.
Status as of 5/15/2026 3:07 PM CST

Case Contacts

Name	BarNumber	Email	TimestampSubmitted	Status
G. Troy Pickett	24072757	houservice@owlawyers.com	5/15/2026 11:42:34 AM	SENT
Morgan Hybner		mhybner@adamslawfirm.com	5/15/2026 11:42:34 AM	SENT
Tina Simon		tsimon@adamslawfirm.com	5/15/2026 11:42:34 AM	SENT
G. TroyPickett		troy@owlawyers.com	5/15/2026 11:42:34 AM	SENT
Reinaldo Aguiar Marcano		aguiar@reinaldo.ca	5/15/2026 11:42:34 AM	SENT
Gloria Espina		gespinam@gmail.com	5/15/2026 11:42:34 AM	SENT
Gloria Espina		gloria.a.espina@gmail.com	5/15/2026 11:42:34 AM	SENT
William ADAMS		wka@adamslawfirm.com	5/15/2026 11:42:34 AM	SENT
Reinaldo Aguiar Marcano		aguiar@reinaldo.ca	5/15/2026 11:42:34 AM	SENT
Oscar Telfair		387th@fortbendcountytx.gov	5/15/2026 11:42:34 AM	SENT
Oscar Telfair		387th@fortbendcountytx.gov	5/15/2026 11:42:34 AM	SENT
G. Troy Pickett		troy@owlawyers.com	5/15/2026 11:42:34 AM	SENT
David Perwin		david@perwinaguirre.com	5/15/2026 11:42:34 AM	SENT
Beverley McGrew Walker		Distclerkcivil@fortbendcountytx.gov	5/15/2026 11:42:34 AM	SENT
Reinaldo Aguiar Marcano		rj.aguiar.m@gmail.com	5/15/2026 11:42:34 AM	SENT
387th Court Scheduler		387thhearings@fortbendcountytx.gov	5/15/2026 11:42:34 AM	SENT